

SENATE BILL 1692

By Massey

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 58; Title 62; Title 63 and Title 68, relative to
military family occupational licensing.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 58, is amended by adding the following
as a new chapter:

58-10-101. Short title.

This chapter is known and may be cited as the "Military Families Licensing
Recognition Act."

58-10-102. Chapter definitions.

As used in this chapter:

(1) "Lawful occupation" or "occupation" means a course of conduct,
pursuit, or profession that includes the sale of goods or services that are not
themselves illegal to sell irrespective of whether the individual selling them is
subject to an occupational regulation;

(2) "Military" means the armed forces of the United States, including the
air force, army, coast guard, marine corps, navy, space force, national guard,
and all reserve components and auxiliaries, including the reserves and militia of
any United States territory or state;

(3) "Occupational license" means a governmental authorization that
allows an individual to engage in a lawful occupation, including a military
occupational specialty, and other forms of government certification required to
work legally in a lawful occupation;

(4) "Occupational licensing board" or "board" means this state, an agency, board, department, or unit of this state, or a subdivision of this state that regulates a lawful occupation and issues an occupational license to an individual;

(5) "Person" means an active or retired member of the military, or a person who is married to or is a dependent of an active or retired member of the military; and

(6) "Scope of practice" means the procedures, actions, processes, and work that a person may perform under an occupational license issued in this state.

58-10-103. Recognition.

(a) Notwithstanding another law, an occupational licensing board shall issue an occupational license in the occupation applied for and at the same practice level, as determined by the board, to a person who pays all applicable fees and applies on a form established by the board. The form must require the person to swear or affirm, under penalties of perjury, that the person meets the following requirements:

(1) The person holds a current and valid occupational license issued by another state or the military in an occupation with a similar scope of practice;

(2) The person has held the occupational license in good standing for at least one (1) year;

(3) The person was required to meet education, training, or experience standards, or to pass an examination to qualify for the occupational license;

(4) The person does not have a disqualifying criminal record under this state's law for the license;

(5) The person's occupational license was not revoked because of negligence or intentional misconduct related to the person's work in the occupation in any state or the military;

(6) The person did not surrender an occupational license because of negligence or intentional misconduct related to the person's work in the occupation in any state or the military; and

(7) The person does not have a complaint, allegation, or investigation pending that relates to unprofessional conduct or an alleged crime. If the person has a complaint, allegation, or investigation pending, the board in this state shall not issue or deny an occupational license to the person until the complaint, allegation, or investigation is resolved, or the person otherwise satisfies the criteria for licensure in this state to the satisfaction of the board in this state.

(b) The board shall issue an occupational license in the occupation applied for and at the same practice level, as determined by the board, to a person who pays all applicable fees and applies on a form established by the board. The form must require the person to swear or affirm, under penalties of perjury, that the person meets the following requirements:

(1) The person has worked for at least three (3) years in the lawful occupation; and

(2) The person satisfies subdivisions (a)(4)-(7).

58-10-104. License decision.

(a) An occupational licensing board shall issue an occupational license within ten (10) business days after receiving the application.

(b) The board must develop criteria to investigate and verify the accuracy of all of the applications it receives prior to the board's issuance of a license.

(c) If, upon further investigation, the board finds the sworn statement included in a person's application is invalid and gives notice to the person in accordance with the board's rules, the board may order the person to cease working. The board may report a perjurious application to the attorney general and reporter for possible prosecution.

58-10-105. State laws and jurisdiction.

A person who obtains an occupational license pursuant to this chapter is subject to the laws regulating the occupation in this state and the jurisdiction of the applicable board in this state.

58-10-106. Limitations.

(a) An occupational license issued pursuant to this chapter is valid only in this state. An occupational license does not make the person eligible to work in another state under an interstate compact or reciprocity agreement unless otherwise provided in law.

(b) This chapter does not:

(1) Prohibit a person from applying for an occupational license under another law of this state;

(2) Prevent this state from entering into a licensing compact or reciprocity agreement with another state or foreign country;

(3) Prevent this state from recognizing occupational credentials issued by a private certification organization, international organization, or other entity;

(4) Apply to an occupation regulated by the state supreme court; or

(5) Require a private certification organization to grant or deny private certification to any individual.

58-10-107. Notice.

A board shall display prominently the following on its website, applications, and related communications:

Pursuant to the Military Families Licensing Recognition Act, active and retired military personnel and their families may qualify for an occupational license based on an occupational specialty, license, and work experience in the military or other states.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.